

The Orissa Ministers' Travelling Allowance Rules, 1964

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[The Orissa Ministers' Travelling Allowance Rules, 1964](#)

[Published vide Notification No.7325-IM-1-9/63-Gen., dated 8th May, 1964](#)

[Notification No.7325-IM-I-9/63-Gen., dated 8th May, 1964. - In exercise of the powers conferred by Sub-section \(1\) of Section 10 of the Orissa Ministers' Salaries and Allowances Act, 1952 \(Orissa Act 20 of 1952](#)

[\), the State Government hereby make the following rules, namely :](#)

1.
Short title.
- These rules may be called the Orissa Ministers' Travelling Allowance Rules, 1964.
2.
Commencement.

- They shall come into force with effect from the 1st March, 1964.

3.

Definitions.

- In these rules, unless the context otherwise requires-

(i)

"actual expense" means the actual cost of charges for hotel bills, lodging and boarding and charges for taxis or other conveyances and coolie charges;

(ii)

"day" means a calendar day beginning and ending at midnight but an absence from headquarters which does not exceed twenty-four hours shall be reckoned for all purposes as one day at whatever hour the absence begins or ends;

(iii)

"family of a Minister" means except where specifically provided otherwise, wife or husband, as the case may be, and the following of his relatives, if wholly dependent on him-

(1)

sons and step-sons, if they are legitimate and below 21 years of age; and

(2)

daughters and step-daughters, if they are legitimate or either unmarried or widow;

Note 1. - Not more than one wife will be included and a female Minister shall not be entitled to any travelling allowance for her husband unless he is wholly dependent on her;

Note 2. - An adopted child shall be considered to be a legitimate child if under the personal law of the Minister adoption is legally recognised as conferring on it the status of a natural child;

(iv)

"place of residence" means a place within the State where a Minister ordinarily resides;

(v)

"travelling allowance" means an allowance granted to a Minister to cover the expenses which he incurs in travelling in the interest of the public service as against travelling in personal interest or for private purpose such as, journeys for rest or recoupment of health or for attending party meetings or for election campaign.

4.

Journey to assume and relinquish charge.

- When a person is appointed to be a Minister he is entitled to travelling allowance as admissible under the Orissa Travelling Allowance Rules to a Government servant of the first grade on transfer for his journey from the usual place of residence to the headquarters for assuming office and for his journey from his headquarters to the usual place of residence on relinquishing charge of office.

5.

Journey by rail.

(a)

(i)

For journeys by rail inside the State on duty or to discharge official business, a Minister shall be entitled to travel in an air-conditioned coach, or in its absence in the highest class available in the train. In special circumstances, he may travel in a reserved first class compartment of two berths.

Note 1. - The expression "official business" refers to occasions when the Minister has to engage himself in functions like swearing-in-ceremony, interview with the President, the Prime Minister or other Minister of the Union Government or other high dignitaries of the Union and State Governments.

Note 2. - When a Minister presents any travelling allowance bill for journey or halt performed by him it shall be presumed that the journey or halt was either on duty or on official business. No certificate need be given by the Ministers concerned that the journey was either on duty or on official business.

(ii)

When journeys are made to places outside the State he may, at his option for the entire or part of the journey travel in a reserved coupe of two berths in the air-conditioned coach or in a first class coupe of two berths; provided that he certifies that the air-conditioned or first class coupe of two berths was solely occupied by him and one of his personal attendants who may or may not be Government Servant.

(b)

For journeys by rail either inside or outside the State Ministers shall be entitled to-

(i)

incidental charges admissible under the Orissa Travelling Allowance Rules to an officer of the first grade, on tour;

(ii)

railway fares actually paid for one of the personal attendants accompanying the Minister on the journey and railway fares at the lowest class rate for the other personal attendant;

(iii)

conveyance at public expense of all luggage not exceeding two quintals for which he vouches as his personal luggage including stores carried for consumption on tour.

6.

Transport of conveyance.

- A Minister may recover the actual cost of transporting a motor-car while on tour, on the production of the certificate by himself that the car was required on tour in the interest of the public service and could not be sent otherwise than by rail without undue inconvenience or expense.

7.

Journey by road.

- [(a) A Minister, when travelling on duty by his own car [or hired car]

[Substituted vide SRO No. 758/98-Orissa Gazette Extraordinary No. 1564 dated 30.11.1998.]

, may draw [Rs. 7.00]

[Substituted vide O.G.E. No. 2004 dated 24.10.2007.]

per kilometre or by a conveyance provided at the expense of Government or otherwise may draw allowance as admissible to Government servant of the First Grade on tour under the Orissa Travelling Allowance Rules.]

(b)

He may draw bus fare actually paid for not more than two personal attendants who may or may not be Government servant at the lowest class rates and shall be entitled to conveyance, at public expense of all luggage not exceeding two quintals which he vouches as his personal luggage including stores carried for consumption on tour.

8.

Journey partly by rail and partly by road.

- When a Minister performs a journey partly by his own car and partly by rail and provides separate conveyance for his personal servants or luggage at his own expense for the portion of the journey performed by rail, he may draw, in addition to the mileage admissible for the journey performed by him in his own car and travelling allowance admissible for the journey by rail, road mileage at half the ordinary rate for the distance by road between the places connected by rail.

9.

Journey by Air.

- (i) A Minister may, in the public interest, travel by Air in a regular air service machine and recover, in respect of such travel, the air fare (except when it is paid by the Government direct to the company) actually paid by him. In addition, he may draw Daily Allowance as admissible.

(ii)

In the case of a free transit by air in a plane chartered or owned by Government, the Minister may draw Daily Allowance as admissible.

(ii-a) Where there is no regular air service or a plane chartered or owned by the State Government is not available a Minister may in the public interest in emergencies, travel by air within the State in any chartered plane and recover the charges actually paid by him for such travel and in addition, he may draw Daily Allowances at the rates admissible; and

(iii)

If the Minister intends to make the return journey also by air, he should purchase a return ticket, if this involves a saving.

(iv)

Re will be entitled to conveyance, at public expense, of all luggage which he vouches as his personal luggage including stores carried for consumption on tour, limited to what would be admissible for carriage of two quintals of personal effects by the cheapest mode of transport by road and/or rail, as the case may be ; and

(v)

A Minister may also be entitled to draw air fare actually paid for not more than one personal attendant who may or may not be a Government servant.

10.

Cancellation of air passage.

- On cancellation of a journey due to official reasons, a Minister shall be entitled to be reimbursed by Government and deduction made by an Air Transport Company when refunding the fare on account of cancellation of the air passage.

11.

Daily allowance.

(1)

Subject to the provision of Sub-rule (2) below a Minister shall be entitled to draw Daily Allowance during halt on tour at the following rates :

[Inside the State

[Rs. 500(five hundred)]

[Substituted vide O.G.E. No. 2004 dated 24.10.2007.]

per day

Outside the State

[Rs. 600(six hundred)]

[Substituted vide O.G.E. No. 2004 dated 24.10.2007.]

per day]:

[Substituted O.G.E. No. 1647 dated 14.12.98.]

Provided that when actual expenses are drawn, no road mileage will be drawn in respect of the road journey at the end of the forward railway journey on the date of arrival and the return road journey to the railway station on the date of departure. Actual expenses, if claimed, will be drawn for all the days of a particular halt and not merely for a part of such halt, e.g., if on the date of departure actual expenses are less than Daily Allowance, it will not be permissible to claim Daily Allowance for that day only and actual expenses for other days of their halt.

Note. - For the purpose of drawing the Daily Allowance or the actual expenses in respect of journeys outside the State "halt" will include the day of arrival at the destination and also the day of departure therefrom.

(2)

For continuous halt exceeding thirty days Daily Allowances will be admissible as follows :

(a)

At the rate specified in Sub-rule (1) above, for the first thirty days.

(b)

At half the above rate, thereafter.

Note. - A halt on tour shall be treated as continuous unless terminated by an absence at a distance exceeding ten kilometres from the halting place for a period covering not less than three consecutive nights.

12.

Travelling allowance admissible as a State guest.

- When a Minister is treated as a State guest during his official visit to a State in India and is provided with free boarding and lodging at the expense of the host Government, he may, if he draws daily allowance limit it to one-half of the daily allowance that would have been admissible to him at the station concerned.

13.

Journeys outside India.

- A Minister proceeding on duty outside India will be entitled to draw the allowances sanctioned according to special orders of Government to be issued for the occasion.

14.

Journey of family on death of Minister.

- On the death of a Minister the members of his family shall be entitled to travelling expenses in respect of the journey from headquarters to the usual place of residence on the same scale as is admissible for the time being to the family of a Government servant of the first grade on his death while in service.

15.

Repeal and saving.

(1)

All rules and orders in force immediately before the commencement of these rules in so far as they relate to matters provided for in these rules are hereby repealed.

(2)

All travelling allowance claims for journey performed before these rules have come into force shall be disposed of in accordance with the rules then in force.

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